

STATE OF NEW YORK

3385--A

Cal. No. 1251

2025-2026 Regular Sessions

IN SENATE

January 27, 2025

Introduced by Sens. HOYLMAN-SIGAL, BAILEY, CLEARE, COMRIE, FAHY, FERNANDEZ, GOUNARDES, HARCKHAM, JACKSON, KAVANAGH, LIU, MAY, MYRIE, SEPULVEDA, SERRANO, STAVISKY -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the penal law, in relation to enacting "Francesco's law"; to amend the executive law, in relation to annual reports by the New York state office of gun violence prevention; and providing for the repeal of certain provisions of the penal law relating to safely storing rifles, shotguns, and firearms

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 "Francesco's law".
3 § 2. Section 265.45 of the penal law, as amended by chapter 371 of the
4 laws of 2022 and subdivision 2 as amended by section 3 of part F of
5 chapter 55 of the laws of 2023, is amended to read as follows:
6 § 265.45 Failure to safely store rifles, shotguns, and firearms [~~in the~~
7 ~~first degree~~].
8 1. No person who owns or is custodian of a rifle, shotgun or firearm
9 [~~who resides with an individual who: (i) is under eighteen years of age;~~
10 ~~(ii) such person knows or has reason to know is prohibited from possess-~~
11 ~~ing a rifle, shotgun or firearm pursuant to a temporary or final extreme~~
12 ~~risk protection order issued under article sixty three A of the civil~~
13 ~~practice law and rules or 18 U.S.C. § 922(g) (1), (4), (8) or (9); or~~
14 ~~(iii) such person knows or has reason to know is prohibited from~~
15 ~~possessing a rifle, shotgun or firearm based on a conviction for a felo-~~
16 ~~ny or a serious offense,~~] shall store or otherwise leave such rifle,
17 shotgun or firearm out of [~~his or her~~] such person's immediate

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 possession or control without having first securely locked such rifle,
2 shotgun or firearm in an appropriate safe storage depository or rendered
3 it incapable of being fired by use of a gun locking device appropriate
4 to that weapon.

5 2. No person shall store or otherwise leave a rifle, shotgun, or
6 firearm out of such person's immediate possession or control inside a
7 vehicle without first removing the ammunition from and securely locking
8 such rifle, shotgun, or firearm in an appropriate safe storage deposito-
9 ry out of sight from outside of the vehicle; provided, however, this
10 subdivision shall not apply to a police officer as such term is defined
11 in subdivision thirty-four of section 1.20 of the criminal procedure
12 law, a qualified law enforcement officer authorized to carry concealed
13 firearms pursuant to 18 U.S.C. 926B, or a person in the military service
14 of the United States or the state of New York when such police officer,
15 qualified law enforcement officer, or person in such military service is
16 acting in the course of such person's official duty or employment and
17 otherwise complying with any applicable standards or requirements
18 pertaining to the storage of such rifle, shotgun, or firearm.

19 3. For purposes of this section "safe storage depository" shall mean a
20 safe or other secure container which, when locked, is incapable of being
21 opened without the key, keypad, combination or other unlocking mechanism
22 and is capable of preventing an unauthorized person from obtaining
23 access to and possession of the weapon contained therein and shall be
24 fire, impact, and tamper resistant. Nothing in this section shall be
25 deemed to affect, impair or supersede any special or local act relating
26 to the safe storage of rifles, shotguns or firearms which impose addi-
27 tional requirements on the owner or custodian of such weapons. For the
28 purposes of subdivision two of this section, a glove compartment or
29 glove box shall not be considered an appropriate safe storage deposito-
30 ry.

31 4. It shall not be a violation of this section [~~to allow a person less~~
32 ~~than eighteen years of age access to: (i) a firearm, rifle or shotgun~~
33 ~~for lawful use as authorized under paragraph seven or seven-e of subdi-~~
34 ~~vision a of section 265.20 of this article, or (ii) a rifle or shotgun~~
35 ~~for lawful use as authorized by article eleven of the environmental~~
36 ~~conservation law when such person less than eighteen years of age is the~~
37 ~~holder of a hunting license or permit and such rifle or shotgun is used~~
38 ~~in accordance with such law.];~~

39 (a) if a person obtained the firearm, rifle, or shotgun as a result of
40 unlawful entry by any person; or

41 (b) a person obtains the firearm, rifle, or shotgun in a lawful act of
42 self-defense or defense of another person.

43 Failure to safely store rifles, shotguns, and firearms [~~in the first~~
44 ~~degree~~] is a [~~class A misdemeanor~~] violation.

45 § 3. Section 265.46 of the penal law is REPEALED.

46 § 4. The penal law is amended by adding a new section 265.51 to read
47 as follows:

48 § 265.51 Failure to safely store rifles, shotguns, and firearms when
49 accessible by a minor or prohibited person.

50 1. For the purposes of this section, the following terms shall have
51 the following meanings:

52 (a) "prohibited person" shall mean any person who is prohibited from
53 possessing a rifle, shotgun or firearm under state or federal law; and

54 (b) "minor" shall mean an individual under eighteen years of age.

55 2. A person is guilty of failure to safely store rifles, shotguns, and
56 firearms accessible to a minor or a prohibited person when:

(a) such person stores or otherwise leaves any rifle, shotgun or firearm in violation of section 265.45 of this article in any location where the owner or custodian of the rifle, shotgun, or firearm knows or has reason to know that a minor or a prohibited person is likely to gain access to such rifle, shotgun or firearm; and

(b) a minor or a prohibited person gains access to such rifle, shotgun or firearm.

3. It shall not be a violation of this section:

(a) if the minor or prohibited person obtained the firearm, rifle, or shotgun as a result of unlawful entry by any person; or

(b) if the minor or prohibited person obtains the firearm, rifle, or shotgun in a lawful act of self-defense or defense of another person.

4. It shall not be a violation of this section to allow a person less than eighteen years of age access to:

(a) a firearm, rifle or shotgun for lawful use as authorized under paragraph seven or seven-e of subdivision a of section 265.20 of this article; or

(b) a rifle or shotgun for lawful use as authorized by article eleven of the environmental conservation law when such person less than eighteen years of age is the holder of a hunting license or permit and such rifle or shotgun is used in accordance with such law.

Failure to safely store rifles, shotguns, and firearms when accessible by a minor or prohibited person is a class A misdemeanor.

§ 5. Section 400.00 of the penal law is amended by adding a new subdivision 19-a to read as follows:

19-a. Any person in violation of section 265.45 or section 265.51 of this chapter shall receive safe storage materials developed by the office of gun violence prevention pursuant to section eight hundred thirty-seven-y of the executive law.

§ 6. Subdivision 3 of section 837-y of the executive law, as added by section 1 of part MM of chapter 55 of the laws of 2025, is amended to read as follows:

3. Annual report. The office shall issue an annual report including, but not limited to, information on the status of gun violence in the state, recommendations for policy and programmatic initiatives to prevent and reduce gun violence in the state, and a description of the efforts of the office to carry out the duties and objectives of the office under this section. Additionally, the office shall, in coordination with the division of criminal justice services, collect and analyze statistical and other information and data with respect to injuries or deaths of minors resulting from failure to safely store a firearm, rifle, or shotgun. Such information may include, but not be limited to, age, gender, racial and ethnic background of the minor or minors involved, as well as the type of injury or cause of death, to the extent such information is available. Such report shall be posted on the division's website no later than one year after the effective date of this section, and annually thereafter.

§ 7. This act shall take effect immediately; provided, however, sections two, three and four of this act shall take effect on the ninetyeth day after it shall have become a law; provided, further, that the amendments to subdivision 3 of section 837-y of the executive law made by section six of this act shall take effect on the same date and in the same manner as section 1 of part MM of chapter 55 of the laws of 2025, takes effect.